

2018 P L C (C.S.) 726

[Lahore High Court]

Before Jawad Hassan, J

Dr. TAHIR SIDDIQUE

Versus

GOVERNMENT OF THE PUNJAB and 3 others

W.P. No.21045 of 2014, heard on 22nd February, 2018.

Civil service---

---Ad-hoc appointment---Minimum criterion---Scope---Regularization of service---Recruitment through Public Service Commission---Effect---Employee who was working on ad-hoc basis applied for regular appointment against the posts advertised by Public Service Commission but he was not selected being lower in merit---Validity---Benefit of regularization should be given to ad hoc employee who fulfilled the minimum criteria of appointment established in tests administered by the Public Service Commission---Case of petitioner was to be considered separately for the purpose of recruitment---Petitioner was entitled to be regularized on the post in question with effect from the date of his interview held by the Public Service Commission and he was also for the salary if any---Authorities were directed to regularize the services of petitioner within fortnight---Constitutional petition was allowed accordingly.

Sherin and 4 others v. Fazal Muhammad and 4 others 1995 SCMR 584; Sohail Jute Mills Ltd. and others v. Federation of Pakistan through Secretary, Ministry of finance and others PLD 1991 SC 329), Samiullah Khan Marwat v. Government of Pakistan through Secretary Establishment, Islamabad and another 2003 SCMR 1140; Hameed Akhtar Niazi v. The Secretary, Establishment Division, Government of Pakistan and others 1996 SCMR 1185 and Government of Sindh v. Saleem Raza 2001 SCMR 701 ref.

Dr. Naveeda Tufail and 72 others v. Government of Punjab and others 2003 SCMR 291 rel.

Pervaiz Inayat Malik for Petitioner.

Ashfaq Ahmad Kharal, Assistant Advocate-General, Suleman Akash, Law Officer and Husnain Abbas Muzamil, Additional Secretary for Respondents.

JUDGMENT

JAWAD HASSAN, J.--- Through the instant Constitutional petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has made the following prayers:

"It is, therefore, respectfully prayed that the Respondents may kindly be directed, to regularize services of the petitioner, as professor of Medicines (BS-20) either from the date of

initial appointment as Ad hoc Employee or at least from the date of passing the test/ interview held by Respondent PPSC, with all back benefits."

2. The facts tersely revealed from the petition are that the Petitioner was appointed as Professor of Medicine (BS-20) on ad hoc basis by the Health Department w.e.f. 22.01.2014. In pursuance of an advertisement for filling four posts of Professor of Medicines (BS-20) on regular basis, the Petitioner duly applied for the said post. But he was not regularized allegedly due to the reason that he was lower in the order of merit as compared to the number of seats to be filled. Hence, this petition.

3. Report and parawise comments have been filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same.

4. Learned counsel for the Petitioner inter alia contended that the Petitioner was fully qualified for the post advertised but he has been deliberately deprived of the same due to the reason that he was lower in merit which is against the principle as laid down by the Hon'ble Supreme Court of Pakistan in case titled Dr. Naveeda Tufail and 72 others v. Government of Punjab and others (2003 SCMR 291); that the marks of the Petitioner, being ad hoc employee, should have been taken into consideration for regularization of his services separately rather than tagging him with initial recruits; that the Petitioner is highly qualified and has unblemished service on his credit, therefore, is eligible for regularization on the said post; that the case of the Petitioner is at par with that of the cases of Pharmacists whose services have been regularized by the Respondents vide order dated 14.06.2013; that a discriminatory attitude has been adopted towards the Petitioner, as such his fundamental rights have been infringed. To fortify his contentions, learned counsel has placed reliance on the case titled Sherin and 4 others v. Fazal Muhammad and 4 others (1995 SCMR 584), Sohail Jute Mills Ltd. and others v. Federation of Pakistan through Secretary, Ministry of Finance and others (PLD 1991 Supreme Court 329), Samiullah Khan Marwat v. Government of Pakistan through Secretary Establishment, Islamabad and another (2003 SCMR 1140), Hameed Akhtar Niazi v. The Secretary, Establishment Division, Government of Pakistan and others (1996 SCMR 1185), Government of Sindh v. Saleem Raza (2001 SCMR 701) and I.C.A. No.718/2013 Dr. Zaheer Iqbal and others v. Province of Punjab through Chief Secretary and others.

5. On the other hand, learned Law Officer vehemently contested the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the instant petition on the grounds that this petition is not maintainable as the petitioner is an ad hoc employee and does not have any right to be regularized under the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 (the "Rules"); that the Petitioner is bound by the terms and conditions of his appointment letter and cannot claim his regularization, particularly, when he did not qualify the PPSC criteria and declared to be low in merit; that this Court has dismissed various petitions on the similar matter. In support of his contentions, learned Law Officer drawn the attention of this Court towards the documents attached with the report and parawise comments. Finally, the learned Law Officer submitted that the case law cited by the learned counsel for the Petitioner does not apply to the present case as each and every case has its own facts and circumstances.

6. I have heard the arguments of both the sides and minutely gone through the whole record.

7. The bare examination the record reveals that admittedly the Petitioner was appointed on ad hoc basis as Professor of Medicine (BS-20) on 22.01.2014 in Khawaja Muhammad Safdar Medical College, Sialkot. Undeniably, the Petitioner also participated in the duly advertised post (Professor of Medicine (BS-20) by the Respondents. The main controversy, alleged by the Petitioner, is that although the Petitioner was declared as lower in merit by the Respondent No.4 yet he was to be regularized in view of the principle laid down by the Hon'ble Supreme Court of Pakistan in Dr. Naveeda Tufail case supra. For the sake of brevity the relevant portion of the said judgment is reproduced below and is as follows:

"It is clarified that the cases of the petitioners shall be sent separately to the Public Service Commission and shall not be tagged with the direct recruits."

8. Furthermore, recently the Hon'ble Division Bench of this Court in I.C.A. No.718/2013 titled Dr. Zaheer Iqbal and others v. Province of Punjab through Chief Secretary and others, allowed the Appeal of the Dental Surgeons, while relying upon the Dr. Naveeda Tufail case supra, has held that the benefit of regularization shall be given to candidates who fulfill the minimum criteria of appointment established in the tests administered by the PPSC. It was further held in the said judgment that therefore, we are of the opinion that the Respondents being obligated to follow the clear cut direction given by the august Supreme Court of Pakistan in 2003 SCMR 291 supra must separately consider the case of the Appellants for the purposes of recruitment.

9. From the above principle laid down by the apex Court, I am of the view that the Petitioner's case is similar to the case discussed in the above mentioned citation, therefore, the Petitioner is fully entitled to be benefited of the same. The perusal of record depicts that vide order dated 20.05.2015 this Court passed the following order:

"5. Adjourned to 24.06.2015. Till final adjudication of this writ petition one post of Professor of Medicine, shall remain vacant."

10. As this Court has ordered for one post of Professor of Medicine (BS-20) to be reserved subject to decision of this petition, therefore, no prejudice would be caused to anybody on regularization of the Petitioner on the said post.

11. On the touchstone of the above discussion as well as the case law, I am of the affirmed view that the Petitioner is entitled to be regularized on the post of Professor of Medicine (BS-20) with effect from the date of his interview held by the Respondent No.4 and he is also held entitled to the salary, if any. Consequently, the instant petition stands accepted and the Respondents are directed to regularize the services of the Petitioner in the above terms within a fortnight after receipt of certified copy of this order.

ZC/T-5/L Petition allowed.